

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 8, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne (arriving at 6:01 pm), Mr. Spiker and Mr. Valdez. Absent: Mr. Pierson. Also present: Kristy Anderson, Deputy City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Collins moved to approve Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 24, 2012. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present.

Public Hearing for a transfer of ownership for a restaurant liquor license application filed with the City Clerk's Office for Judi's Cajun Kitchen, LLC d/b/a Judi's Cajun Kitchen, 620 Central Avenue, Cheyenne, Wyoming (License currently held by Real Mexican Food, Inc., 620 Central Avenue, Cheyenne, Wyoming). Kristy Anderson, Deputy City Clerk, stated written notification had been received by the applicant advising that the application is being withdrawn at this time and, therefore, there is no longer a purpose to conduct the public hearing. Upon inquiry with no objection raised by members of City Council, Mayor Kaysen announced the public hearing was being cancelled.

ORDINANCE - Vacating a Portion of the Right-of-Way of Bradley Avenue at the Intersection of Bradley Avenue and East 14th Street. Reporting for Public Services Committee, Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body present. (#3958)

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the zoning classification from MR-1 Medium-Density Residential Established District to MUB Mixed-Use Business Emphasis District for Block 16, Park Addition, Cheyenne, Wyoming (located between Richardson and Cosgriff Courts and between Ames Court and Dey Avenue). Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Ms. Ash moved to amend by substitute, seconded by Ms. Broyles. It was noted the purpose for the substitute is to include standard language indicating the zone change will not take effect until the final plat is approved. Motion to amend carried. Voting "yes" -- all members of the governing body present. Comments followed

regarding concerns with approving spot zoning wherein most of the area surrounding the property is zoned residential; support for the zone change, and types of uses for the currently vacant lot and building that aren't allowed under the current zone classification. Motion, as amended, carried. Voting "yes"-- all members of the governing body present. (#3959)

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the Zoning Classification from MUB Mixed-Use Business Emphasis District to CB Community Business District for Lots 12-22, Block 656, Original City (AKA South Cheyenne Addition), Cheyenne, Wyoming (located at 504 Central Avenue). Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes"-- all members of the governing body present. (#3960)

ORDINANCE - Pursuant to Section 2.2.1 Zoning Map Amendment, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map of the Unified Development Code, changing the Zoning Classification from MUB Mixed-Use Business Emphasis District to CB Community Business District for a Portion of Lot 2, Block 3, Plaza Del Range, Cheyenne, Wyoming (located at 3308 Dell Range Boulevard). Ms. Ash moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting "yes"-- all members of the governing body present. (#3961)

ORDINANCE - Creating Section 6.08.180 Feeding Geese and Ducks Prohibited, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the Code of the City of Cheyenne, Wyoming. Shirley Stamm, spoke in opposition to the proposed ordinance noting concerns with the proposed penalty provision for violations. She provided a handout of pictures (on file with City Clerk's office) depicting a park in North Platte, NE that contains resident geese and commented that officials there have placed swans in the park to assist with cutting down the geese population. Ms. Stamm voiced her suggestions on dealing with the number of geese in the community. Marilee Manalo also expressed her opposition to the proposed ordinance; noted community benefits geese provide, offered alternative suggestions to dealing with geese, and recommended additional research be done on the topic prior to acting on the ordinance. Jan Nelson-Schroll also stated her belief that more research should be conducted on alternatives specific to parks, encouraged the park area be cleaned on a regular basis, and spoke in opposition to the proposed \$750 fine for violations. Ms. Ash moved to approve on second reading, seconded by Ms. Broyles. Ms. Ash moved to amend by substitute, seconded by Ms. Broyles. Discussion followed on the proposed fine amount and jail time contained in the proposed substitute, and having those provisions in place to "mainstream" all fines and fees within City Code. Motion to amend failed. Voting "yes"-- Mr. Allen and Ms. Broyles. Voting "no" -- Ms. Ash, Mr. Brown, Mr. Collins, Dr. Rinne, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Upon inquiry, Todd Feezer, Assistant Director, Parks and Recreation Department, provided information on alternative methods to control the geese population such as egg addling, landscape changes, hazing, repellent and canine control. He explained that most geese problems take place in manicured areas of parks and advised they are planning to change some of the landscaping elements to make it less attractive for geese. He advised repellent has been used with little noticeable difference; hazing methods are expensive alternatives, and that egg addling has been the most successful method previously used. Mr. Feezer stated that 80% of geese that are relocated will find their way back to their native park; that curtailing the population is the goal, not harming the existing population, and that the first step is to quit feeding the geese. Discussion continued on alternative methods to controlling the geese population including

down sides to applying repellent and adding swans that can be aggressive and dangerous. Upon inquiry, Dan White, City Attorney, advised he was not aware if an ordinance such as the proposed one has to have a fine attached to it. Main motion carried. Voting "yes" -- all members of the governing body present with the exception of Ms. Broyles and Mr. Valdez voting "no". Under other business, Ms. Nelson-Schroll asked for clarification on the purpose of halting the feeding of geese. Mr. Feezer explained that the program would be designed to control the future population of geese and the existing number is tolerable if they would migrate when and where they should. Ms. Stamm suggested relocating existing signage (re: Holliday Park), which states not to feed the ducks and geese, to a lower level where it can be seen by more people.

[CA] RESOLUTION - Authorizing submission of an application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding through the Business Committed Grant Program for a Fuel Cell Data Plant. Motion (per Consent Agenda) carried. (#5434)

[CA] RESOLUTION - Authorizing submission of an application to the State Loan and Investment Board for a Grant from the Transportation Enterprise Fund on behalf of the Governing Body of the City of Cheyenne/Cheyenne Transit Program, for the purpose of purchasing three 22 passenger replacement busses. Motion (per Consent Agenda) carried. (#5435)

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the Town of Albin's projects to be submitted to the State Loan and Investment Board for the December 2012 Countywide Consensus Block Grant funding in the total amount of \$115,000 -- referred to Finance Committee (sponsor -- Mr. Collins).

[CA] RESOLUTION - Certifying that the Governing Body of the City of Cheyenne is in support of the Town of Pine Bluffs project to be submitted to the State Loan and Investment Board for the December 2012 Countywide Consensus Block Grant funding in the amount of \$26,000 --referred to Finance Committee (sponsor -- Mr. Collins).

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2013 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Designating the Cheyenne Downtown Development Authority ("DDA") as the local Main Street Organization for the implementation of the Wyoming Main Street Program; authorizing the Mayor and City Clerk to join with the DDA in the submission of a Wyoming Main Street-Certified Track Application to the Wyoming Business Council; and designating the Executive Director of the DDA as the Program Director for the Wyoming Main Street Program in the City of Cheyenne -- referred to Finance Committee (sponsor -- Dr. Rinne).

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 to provide services for students with disabilities for the 2012 - 2013 school year. Motion (per Consent Agenda) carried. (#5913)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County School District No. 1 for counseling services for school referred students. Motion (per Consent Agenda) carried. (#5914)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the Town of Pine Bluffs, Wyoming, Police Department, for law enforcement extraterritorial. Motion (per Consent Agenda) carried. (#5915)

[CA] Memorandum of Understanding between the City of Cheyenne, Police Department, and the City of Laramie, Wyoming, Police Department, for law enforcement extraterritorial assistance. Motion (per Consent Agenda) carried. (#5916)

[CA] Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization, and Ayres Associates, Inc. to prepare the Dell Range Corridor Study (Federal MPO funds, Federal Highway Safety Grant). Motion (per Consent Agenda) carried. (#5917)

[CA] Contract between the City of Cheyenne, Transit Division, and Wyoming Department of Health, Aging Division, to provide supportive services to persons 60 years or older (Title III-B Program Grant) -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Capitals Youth Hockey Association, for 2012 - 2013 youth hockey season at the City owned Ice and Events Center -- referred to Finance Committee.

[CA] Ratification of existing Contract No. 5801 between the City of Cheyenne and Associated Legal Group, LLC, to provide funding for additional legal services as needed for the acquisition of property for the East Pershing Boulevard Reconstruction Phase IV Project, as provided in Section 6.E. of said contract -- referred to Finance Committee.

[CA] Contract Modification No. 2 to Contract No. 5432 between the City of Cheyenne, Sanitation Division, and A-1 Organics for resources and services at the public Composting Facility -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5511 between the City of Cheyenne, Public Works Department, and TriHydro Corporation for environmental monitoring at the Happy Jack Landfill -- referred to Finance Committee.

[CA] Consideration of Bid #R-2-13 for two new 2012-2013 ten yard dump trucks with spreader and snow plows for the Street and Alley Division (2011-2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Peterbilt of Wyoming, Cheyenne, WY; amount not to exceed \$426,174.00, includes trade-ins).

[CA] Consideration of Bid #R-3-13 for furnishing and installing miscellaneous Police Vehicle Equipment for the Cheyenne Police Department (State Land & Investment Board funding). Motion (per Consent Agenda) carried (accept bid from L.A.W.S., Englewood, CO; amount not to exceed \$97,710.64).

[CA] Consideration of Bid #M-4-13 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corporation, Cheyenne, Wyoming, for the East Pershing Boulevard Reconstruction Phase IV Project (1% Sales Tax 2007-2010, State and Local Grants, Water and Sewer

Enterprise funds, Miscellaneous Federal Grants) -- referred to Finance Committee.

[CA] Consideration of Bid #M-6-13 for a contract between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Inc., Cheyenne, Wyoming, for the Cheyenne Greenway Walterscheid Underpass Project (1% Specific Purpose Sales and Use Tax, Miscellaneous Federal Grants) -- referred to Finance Committee.

Announcement was made of a Public Hearing to be held October 22, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the East Half of the East Half (E½E½) of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located approximately 150 feet west of the intersection of Converse Avenue and Ogden Road).

There being no further business to come before the governing body, the meeting was officially adjourned at 6:56 p.m.

Submitted by,

Kristy B. Anderson, CMC
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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